SOFTWARE SUBSCRIPTION AGREEMENT

The Barndo Builders Warehouse · Hohenwald, Tennessee · info@thebarndobuilders.com

This Software Subscription Agreement (this "**Agreement**") is entered into as of _____ (the "**Effective Date**") by and between **The Barndo Builders Warehouse**, of Hohenwald, Tennessee ("**Provider**"), and

Customer / business name: _____ ("**Customer**")

Address: _____ Phone: _____

This Agreement is between The Barndo Builders Warehouse and the Customer named above only, and the Software is licensed for the named Customer's use alone — it is not for use by, or transferable to, any other user, person, or business.

1. THE SOFTWARE

Provider grants Customer access to the Barndo Builders estimating and design software, including the 3D buildout, takeoff, material kit pricing, blueprint, proposal and quoting modules, together with updates Provider releases during the Term (the "**Software**").

2. LICENSE & SINGLE-CUSTOMER USE

Provider grants Customer a limited, non-exclusive, **non-transferable** license to use the Software for Customer's own business during the Term. Customer shall not share, resell, sublicense, rent, copy, or provide access to the Software or any login credentials to any person or business other than Customer's own employees, and shall not reverse engineer, modify, or create derivative works of the Software. All rights, title, and interest in the Software remain with Provider.

3. TERM — FULL-YEAR COMMITMENT & RENEWAL

The initial term of this Agreement is **twelve (12) months** from the Effective Date (the "**Initial Term**"). **Customer agrees and commits to the full twelve-month term and to payment of all twelve monthly subscription payments.** Early cancellation does not relieve Customer of the obligation to pay the remaining monthly payments of the then-current term, which become immediately due. At the end of the Initial Term, this Agreement renews for successive twelve-month terms at the then-current rate unless either party gives written notice of non-renewal at least thirty (30) days before the end of the current term.

4. FEES & PAYMENT

Item	Amount	When due
One-time setup fee	**$2,000.00**	Due in full upon signing, before access is provided. Non-refundable.
Monthly subscription	**$599.00 / month**	Due monthly on the anniversary day of the Effective Date (signed on the 15th → due the 15th of each following month). First payment one (1) month after the Effective Date; twelve (12) payments per term.

Payments more than ten (10) days late accrue a late charge of 1.5% per month on the outstanding balance, and Provider may suspend access to the Software until the account is current. Suspension does not pause or extend the Term. Customer is responsible for any applicable sales or use taxes.

5. CUSTOMER DATA

Customer's leads, quotes, pricing, and project data entered into the Software belong to Customer. Provider will not sell Customer's data and will use it only to provide and support the Software.

6. SUPPORT & UPDATES

The subscription includes software updates and reasonable support by phone or email during normal business hours. On-site training, custom development, and services beyond the Software are not included and may be quoted separately.

7. DISCLAIMER

The Software is a professional estimating aid. Estimates, material lists, takeoffs, and preliminary drawings produced by the Software are tools and starting points only — Customer is solely responsible for verifying all quantities, prices, dimensions, and code compliance before relying on them, and for all bids, contracts, and construction performed by Customer. THE SOFTWARE IS PROVIDED "AS IS" AND PROVIDER DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE.

8. LIMITATION OF LIABILITY

To the maximum extent permitted by law, Provider's total liability arising out of or related to this Agreement shall not exceed the subscription fees paid by Customer during the three (3) months preceding the claim, and in no event shall Provider be liable for lost profits or indirect, incidental, or consequential damages.

9. TERMINATION FOR BREACH

Either party may terminate this Agreement if the other party materially breaches it and fails to cure within fifteen (15) days of written notice. On any termination, Customer's access ends and all amounts owed for the then-current term become due. Sections 2, 7, 8, and 10 survive termination. Upon written request within thirty (30) days of termination, Provider will make Customer's data available for export.

10. GENERAL

This Agreement is governed by the laws of the State of Tennessee, with venue in Lewis County, Tennessee. It is the entire agreement between the parties regarding the Software and supersedes all prior discussions. It may be amended only in a writing signed by both parties, and may be signed in counterparts (including electronic or scanned signatures, which are binding). If any provision is held unenforceable, the remainder stays in effect. Customer may not assign this Agreement without Provider's written consent.

Agreed and accepted by the parties as of the Effective Date:

PROVIDER — The Barndo Builders Warehouse	**CUSTOMER**
_____	_____
Signature	Signature
_____	_____
Printed name & title	Printed name & title
_____	_____
Date	Date